8. Recognition of Political Parties The Constitution of France gives recognition to political parties and their role. It is for the first time in France that a Republican Constitution not only mention parties but also acknowledges them as a normal part of political life. The Constitution states that the "parties must respect the principles of national sovereignty and democracy".

Table 95.2 Amended Provisions of the Constitution Relating to the French President

Sl. No.	Elements	Original Provisions	Amended Provisions (year)
1.	Mode of election	Indirect election	Direct election (1962)
2.	Tenure of office	Seven years	Five years (2000)
3.	Number of terms allowed	No limit on the number of terms	Not more than two consecutive terms (2008)

French President

Mode of Election Originally, the Constitution provided for an indirect election of the President. He/she was to be elected by an electoral college consisting of three types of members — (i) national representatives (members of two Houses of Parliament); (ii) representatives of the local authorities and (iii) representatives of the overseas territories. However, in 1962, the Constitution was amended through a referendum.

The President is now directly elected by universal suffrage. In order to win the election, a candidate has to obtain an absolute majority of the votes cast. In case no candidate obtains the requisite majority in the first ballot, then a second ballot is held. Only the two candidates who have received the highest number of votes in the first ballot may stand in the second ballot.

Tenure and Removal The President is elected for a term of five years. He/she is eligible for re-election; but for another consecutive term only. Moreover, the Constitution has not prescribed any qualifications (including the minimum age limit) for the Presidential office.

If the presidency falls vacant, the functions of the President (except submitting a bill to a referendum and dissolution of the National Assembly) are performed temporarily by the President of the Senate and if he/she is also not in a position, the functions are performed by the government.

The President can be removed from the office before the expiry of his/her normal tenure of five years through an impeachment for high treason. The impeachment resolution should be passed by both the Houses of Parliament by an absolute majority. After this indictment by the Parliament, the President is tried by the High Court of Justice.

Powers and Functions The President is the pivot of the Constitution and occupies a dominant position in the system of government. He/she is the real head of the state, the leader of the nation and the symbol of national unity. His/her powers and functions are as follows: